

HOUSE BILL No. 1064

DIGEST OF INTRODUCED BILL

Citations Affected: IC 10-19-2-2; IC 32-40; IC 35-52-32.

Synopsis: Unmanned aerial vehicles. Makes repeated operation of an unmanned aerial vehicle (UAV) over private real property a nuisance, with both civil and criminal penalties, including an increased penalty for nuisances involving agricultural property. Provides that operating a UAV not more than 100 feet above private real property or landing the UAV on private real property is a civil trespass, with civil penalties, including an increased penalty for trespasses involving agricultural property. Creates various crimes for operating a UAV over certain places, people, or animals such as livestock. Provides that operating a UAV to collect certain data, recordings, or photographs of an individual or area of real property is a Class A misdemeanor. Provides, however, that the violation is a Level 6 felony if the subject of the data, recordings, or photographs involves certain critical infrastructure. Requires a person who operates a UAV that is at least 55 pounds to carry liability insurance, and requires the department of homeland security to develop and administer a program to verify UAV insurance compliance. Makes conforming changes.

Effective: July 1, 2026.

Culp

December 5, 2025, read first time and referred to Committee on Courts and Criminal Code.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1064

A BILL FOR AN ACT to amend the Indiana Code concerning property.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 10-19-2-2, AS AMENDED BY P.L.187-2021,
- 2 SECTION 10, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
- 3 JULY 1, 2026]: Sec. 2. (a) The department shall do the following:
- 4 (1) Develop a single strategic plan for preparing for and
- 5 responding to homeland security emergencies.
- 6 (2) Assess state and local security needs.
- 7 (3) Administer all state emergency management and response
- 8 training programs.
- 9 (4) Administer the state's emergency operations functions during
- 10 an emergency.
- 11 (5) Administer the following:
- 12 (A) IC 10-14.
- 13 (B) IC 16-31.
- 14 (C) IC 22-11.
- 15 (D) IC 22-12.
- 16 (E) IC 22-13.
- 17 (F) IC 22-14.



(G) IC 22-15.

(6) Develop and administer a program to verify liability insurance policies described in IC 32-40-5-1.

(b) The executive director may organize the personnel and functions of the department into divisions and subdivisions to carry out the executive director's powers and duties and the powers and duties of the department. The executive director may periodically consolidate, divide, or abolish divisions and subdivisions as is necessary to carry out those powers and duties.

SECTION 2. IC 32-40 IS ADDED TO THE INDIANA CODE AS A NEW ARTICLE TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]:

ARTICLE 40. UNMANNED AERIAL VEHICLES

Chapter 1. Applicability

Sec. 1. (a) This article applies to unmanned aerial vehicles operating at or below an altitude of four hundred (400) feet.

(b) This article does not apply to any of the following:

(1) Emergency responders, including:

(A) a firefighter;

(B) an emergency medical person; or

(C) a member of a search and rescue team or mission.

(2) Law enforcement's use of an unmanned aerial vehicle under IC 35-33-5.

(3) FAA certified airspace transit.

(4) Any regulatory entity for purposes of licensure inspections.

(5) An individual if the individual:

(A) is only operating the unmanned aerial vehicle over the individual's property; or

(B) is acting on behalf of:

(i) the federal government;

(ii) the state; or

(iii) a local government;

for a government or military purpose.

Chapter 2. Definitions

Sec. 1. The definitions in this chapter apply throughout this article.

Sec. 2. "Enclosed curtilage" refers to the area immediately surrounding a dwelling, including a fenced in yard or any other space shielded from public view, where a person has a reasonable expectation of privacy.

Sec. 3. "Liability insurance" refers to an insurance policy that



covers property damages and bodily injury caused by an unmanned aerial vehicle.

Sec. 4. "Unmanned aerial vehicle" means an aircraft that does not carry a human operator and that is capable of flight under remote control or autonomous programming. The term includes the following:

(1) An unmanned aircraft and an unmanned aircraft system (both as defined in the Federal Aviation Administration Modernization and Reform Act of 2012 (P.L.112-95, 126 Stat. 11)).

(2) A small unmanned aircraft and a small unmanned aircraft system (both as defined in 14 CFR 107.3).

Chapter 3. Civil Actions Involving Unmanned Aerial Vehicles

Sec. 1. (a) Repeatedly operating an unmanned aerial vehicle over private real property without the property owner's permission is a nuisance.

(b) A person who knowingly or intentionally violates this section commits a Class A misdemeanor.

Sec. 2. The following actions are considered a civil trespass for purposes of this chapter if done without the property owner's permission:

(1) Operating an unmanned aerial vehicle not more than one hundred (100) feet above:

(A) ground level over; or

(B) a permanent structure located on;

private real property.

(2) Landing an unmanned aerial vehicle on private real property.

Sec. 3. (a) A person may bring an action under this chapter if the person's:

(1) property is injuriously affected; or

(2) personal enjoyment is lessened;

by a nuisance described in section 1(a) of this chapter or a civil trespass described in section 2 of this chapter.

(b) A person that successfully defends an action under this section is entitled to reasonable costs and attorney's fees incurred in defending the action.

Sec. 4. A court may do any one (1) or more of the following:

(1) Issue an injunction.

(2) Award damages, including punitive damages.

(3) Impose a civil penalty not greater than one thousand dollars (\$1,000) per incident. However, a civil penalty under



1 this subdivision may be increased to not greater than five
 2 thousand dollars (\$5,000) per incident if the incident involved
 3 operating an unmanned aerial vehicle over:

- 4 (A) livestock;
- 5 (B) a farm building;
- 6 (C) a farm worker; or
- 7 (D) any farm equipment.

8 Chapter 4. Crimes Involving Unmanned Aerial Vehicles

9 Sec. 1. (a) A person who knowingly or intentionally operates an
 10 unmanned aerial vehicle over or inside any of the following
 11 locations commits a Class A misdemeanor:

- 12 (1) A school when children are present.
- 13 (2) A playground when children are present.
- 14 (3) A child care facility when children are present.
- 15 (4) A penal facility or a juvenile facility.
- 16 (5) A private dwelling, including any enclosed curtilage.
- 17 (6) A confined space such as a livestock barn.

18 (b) It is a defense to a prosecution under this section that the
 19 person who engaged in the conduct prohibited by subsection (a)
 20 had express consent.

21 Sec. 2. (a) A person who knowingly or intentionally operates an
 22 unmanned aerial vehicle over:

- 23 (1) animals or livestock; or
- 24 (2) agricultural workers in a field or barn;

25 commits a Class A misdemeanor.

26 (b) It is a defense to a prosecution under this section that the
 27 person who engaged in the conduct prohibited by subsection (a)
 28 had the property owner's permission.

29 Sec. 3. (a) A person who knowingly or intentionally uses an
 30 unmanned aerial vehicle to:

- 31 (1) record video or audio of;
- 32 (2) collect:
 - 33 (A) visual;
 - 34 (B) audio; or
 - 35 (C) thermal;
- 36 data regarding; or
- 37 (3) photograph;

38 an individual or area of private real property without the
 39 individual's or property owner's permission commits a Class A
 40 misdemeanor.

41 (b) The offense under subsection (a) is a level 6 felony if the
 42 subject of the recording, data, or photograph involves critical



1 infrastructure for agriculture or energy.

2 (c) It is a defense to a prosecution under this section that the
3 person who engaged in the conduct prohibited by subsection (a) or
4 (b) had the property owner's permission.

5 **Chapter 5. Liability Insurance**

6 **Sec. 1. A person who operates an unmanned aerial vehicle that**
7 **is at least fifty-five (55) pounds must purchase and maintain**
8 **liability insurance.**

9 SECTION 3. IC 35-52-32-5 IS ADDED TO THE INDIANA CODE
10 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
11 1, 2026]: **Sec. 5. IC 32-40-3-1 defines a crime concerning repeated**
12 **operation of an unmanned aerial vehicle over private real property**
13 **without permission.**

14 SECTION 4. IC 35-52-32-5.1 IS ADDED TO THE INDIANA
15 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
16 [EFFECTIVE JULY 1, 2026]: **Sec. 5.1. IC 32-40-4-1 defines a crime**
17 **concerning operation of an unmanned aerial vehicle over**
18 **prohibited places.**

19 SECTION 5. IC 35-52-32-5.2 IS ADDED TO THE INDIANA
20 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
21 [EFFECTIVE JULY 1, 2026]: **Sec. 5.2. IC 32-40-4-2 defines a crime**
22 **concerning operation of an unmanned aerial vehicle over animals,**
23 **livestock, or agricultural workers.**

24 SECTION 6. IC 35-52-32-5.3 IS ADDED TO THE INDIANA
25 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
26 [EFFECTIVE JULY 1, 2026]: **Sec. 5.3. IC 32-40-4-3 defines a crime**
27 **concerning operation of an unmanned aerial vehicle to collect**
28 **recordings, data, or photographs.**

